

SENATE BILL 1745

By Bowling

AN ACT to amend Tennessee Code Annotated, Title 4,
Chapter 21, relative to discrimination.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 4, Chapter 21, is amended by adding the following as a new part:

4-21-1301. Short title.

This part is known and may be cited as the "Banning Bostock Act."

4-21-1302. Laws prohibiting sex discrimination.

(a) Notwithstanding this chapter or any law to the contrary, a law of this state or any of its subdivisions that prohibits sex discrimination must not be construed to:

- (1) Prohibit discrimination against a person for being homosexual or transgender;
- (2) Prohibit discrimination on account of or because of sexual orientation, sexual behavior, gender identity, or gender non-conforming behavior;
- (3) Prohibit the establishment or enforcement of sex-segregated restrooms, locker rooms, shower facilities, changing areas, dormitories, or sports teams;
- (4) Prohibit the establishment or enforcement of sex-specific dress or grooming codes; or
- (5) Prohibit discrimination on account of or because of any conduct related to abortion.

(b) A court shall not adopt, apply, incorporate, or follow the holding or reasoning of *Bostock v. Clayton County*, 590 U.S. 644 (2020), when interpreting a law of this state or any of its subdivisions that prohibits sex discrimination.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it, and applies to actions occurring on or after that date.